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LINE 11

26-CIV-02953

JOHN ROE VS. GENENTECH, INC

JOHN ROE
GENENTECH, INCJAMES A. DAL BON

PLAINTIFF'S MOTION FOR LEAVE TO PROCEED UNDER PSEUDONYM

TENTATIVE RULING:

Plaintiff's request for leave to proceed under a pseudonym is DENIED. Plaintiff's request to file medical or other information under seal is DENIED without prejudice to bring a motion to seal when those documents are filed in this court for a motion or trial (discovery motions have different rules about confidential information).

In this case, plaintiff sues defendant alleging in substance that it improperly rescinded an employment offer because of his criminal conviction. He has presented no evidence that his conviction has been expunged and sealed. It appears undisputed that defendants discovered his criminal convictions when defendant performed a routine background check, which implies that the conviction is a matter of public record.

Public access to court proceedings is paramount. (Code Civ. Proc., § 124; *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1197 (*NBC Subsidiary*).) “[O]pen trials serve to demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings [citation]; ‘[m]ore importantly,’ open trials provide a means, ‘akin in purpose to the other checks and balances that infuse our system of government,’ by which citizens scrutinize and ‘check’ the use and possible abuse of judicial power [citation]; and finally, ‘with some limitations’ [citation], open trials serve to enhance the truth-finding function of the proceeding [citation].” (*NBC Subsidiary*, at pp. 1201–1202, quoting Justice Brennan's concurring opinion in *Richmond Newspapers, Inc. v. Virginia* (1980) 448 U.S. 555 [public access to criminal trial]; see *NBC Subsidiary*, at p. 1211 [concluding same principles apply to civil trials].) “ ‘Popular attendance at trials, in sum, substantially furthers the particular public purposes of that critical judicial proceeding. In that sense, public access is an indispensable element of the trial process itself....’ [Citation.]” (*NBC Subsidiary*, at p. 1202.) Court records are presumed to be open. (Cal. Rules of Court, rule 2.550(c).)

Public access, however, is not absolute. (*NBC Subsidiary, supra*, 20 Cal.4th at p. 1217.) Certain types of information are confidential and the public is not entitled to access that information. (See e.g. *Overstock.com, Inc. v. Goldman Sachs Grp., Inc.* (2014) 231 Cal.App.4th 471, 503.) To balance the competing policies, in order to prohibit the public from seeing certain documents in the court filed, the Court must expressly find:

- (1) There exists an overriding interest of the third party's right to privacy that overcomes the right of public access to the records;
- (2) The overriding interest supports sealing the records;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the records are not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

(Cal. Rules of Court, rule 2.550.)

When individuals employ the public powers of state courts to accomplish private ends, they do so in full knowledge of the possibly disadvantageous circumstance that the documents and records filed therein will be open to public inspection. Part of the right to access means "the right to know the identity of the parties." (*Roe v. Smith* (2025) 116 Cal.App.5th 227, 237–238 [cleaned up].) Thus, in *Roe v. Smith*, a defamation action involving allegations of sexual misconduct which the court agreed was a sensitive and private matter, after a detailed analysis of the case law and policies for and against allowing a party to proceed under a pseudonym, the court found that the conclusory allegations of reputational and economic harm were insufficient to support an overriding interest to protect plaintiffs from harm in the futures. Thus, the court held that plaintiffs could not proceed under pseudonyms.

This court, as it must, in applying *Roe v. Smith* finds after weighing all the evidence and the competing policies of protecting private and/or sensitive information, the right of public access, and the probability that the public interest would be prejudiced if the court allows plaintiff to proceed under a pseudonym finds that: plaintiff has some slight interest in having this information protected but it is greatly outweighed by the right of public access and the prejudice suffered if the motion was granted. Based upon the evidence, plaintiff's conviction is a matter of public record because defendant was able to find it through a background search. It is more likely that future employers would discover the information through a background search than scouring the court files. His concerns about how future employers and others might act are not based on any evidence but mere conjecture. As the parties point out, the law not governs how employers may treat criminal convictions. Additionally, unlike the background check, even if the case is discovered, the court file will contain plaintiff's explanation of why the conviction should not have been a disabling factor. Plaintiff knew when he filed suit that court records are open to inspection. Against plaintiff's interest is the public interest in access to court files, including the names of litigants, and the long-standing law limiting those who can proceed under a pseudonym. The court finds the public would be prejudiced if plaintiff is allowed to proceed under a pseudonym.

The court denies without prejudice plaintiff's request for the sealing of documents. As the law requires, the court must consider each request under the standards of California Rules of Court, rule 2.550. The court cannot make a forward looking ruling on documents which are not specifically identified and are not related to a specific motion.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendant shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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LINE 12

26-CIV-06641

SANJIV S. DHAWAN, AS TRUSTEE OF THE SANJIV SHARAN DHAWAN AND SHILPA
DHAWAN JOINT LIVING TRUST VS. CALIFORNIA TD SPECIALIST, ET AL.

SANJIV S. DHAWAN, AS TRUSTEE OF THE SANJIV SHARAN DHAWAN AND SARAH SHAPERO
SHILPA DHAWAN JOINT LIVING TRUST
CALIFORNIA TD SPECIALIST

PLAINTIFF'S MOTION FOR PRELIMINARY INJUNCTION

TENTATIVE RULING:

For the reasons stated below, Plaintiff Sanjiv Dhawan (as Trustee)'s request for a preliminary injunction, made via *ex parte* application on August 25, 2026, is DENIED.

Background. Plaintiff Sanjiv Dhawan (in his capacity as Trustee) owns real property in Menlo Park that is in default under a loan, secured by a deed of trust. This property is not his residence, but an investment property. Plaintiff's loan has an unpaid balance of over \$3.7 million, plus accruing interest, fees, and costs. (Cmplt., ¶ 6; Dhawan Decl., ¶ 2.)

After the property was initially scheduled for a foreclosure sale, Plaintiff apparently obtained an initial 45-day postponement of the sale by presenting defendant MAMS RTL Trust (Defendant), who is specially appearing to oppose this motion, with a listing agreement, as allowed under Civil Code section 2924f, subdivision (e)(1), indicating that the property would be publicly listed for sale. It appears that the sale was then postponed to August 11, 2026. Shortly before that date, Plaintiff presented Defendant with a California Residential Purchase Agreement (PSA), indicating that an agreement had been reached to sell the property to The Suri Family Living Trust (Sunil Suri, Trustee). The Purchase Agreement identified a purchase price of about \$5.15 million, 80% of which would be financed. The buyer was required to pay, within five days of acceptance, \$103,000, and a \$1,130,000 total downpayment.

Having presented Defendant with the Purchase Agreement, Plaintiff requested another 45-day extension of the sale pursuant to Civil Code section 2924f, subdivisions (e)(3)-(4), which mandates another 45-day extension where the foreclosure trustee is presented with a "*bona fide*," fully executed sales contract. To determine whether the Purchase Agreement was genuine (i.e., whether the proposed sale was actually going forward), Defendant requested evidence from Plaintiff (and from escrow) that the buyer had met the initial contractual requirement of paying the \$103,000 deposit. Plaintiff could not provide such evidence, because it had not been paid. Plaintiff argued, however, that Civil Code section 2924f, subdivision (e)(3) does not expressly require payment of a deposit.

A trustee's sale was apparently re-scheduled for August 26, 2026. On August 25, 2026, one day before the scheduled sale, Plaintiff, through his counsel, Sarah Shapero, appeared *ex parte*
